

COMMITTEE ON JUDICIARY AND ELECTIONS
SENATE AMENDMENTS TO S.B. 1140
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

~~[GREEN STRIKEOUT IN BRACKETS]~~ indicates new text removed from statute or previously enacted session law.

~~[Green strikeout in brackets]~~ indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

~~<<Green strikeout in carets>>~~ indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Title 13, chapter 9, Arizona Revised Statutes, is
3 amended by adding section 13-922, to read:

4 13-922. Misdemeanor records; expungement

5 A. NOTWITHSTANDING SECTION 8-348 OR 13-905, A PERSON [WHO IS] [MAY
6 FILE A PETITION WITH THE COURT FOR AN EXPUNGEMENT OF THE PERSON'S RECORD
7 AS FOLLOWS:

8 1. THREE YEARS AFTER THE DATE OF THE PERSON'S ARREST IF THE PERSON
9 WAS] ARRESTED FOR A MISDEMEANOR OFFENSE AND NO CHARGES WERE FILED[.]
10 [, WHO IS]

11 [2. THREE YEARS AFTER THE DATE OF THE DISMISSAL IF THE PERSON WAS]
12 CHARGED WITH A MISDEMEANOR OFFENSE AND THE CHARGE WAS SUBSEQUENTLY
13 DISMISSED[.] [OR]

14 [3. THREE YEARS AFTER THE DATE OF THE NOT GUILTY VERDICT IF THE
15 PERSON WAS CHARGED WITH A MISDEMEANOR OFFENSE AND THE CHARGE] RESULTED IN
16 A NOT GUILTY VERDICT[.] [OR WHO IS CONVICTED OF A MISDEMEANOR OFFENSE MAY
17 PETITION THE COURT FOR AN EXPUNGEMENT OF THE RECORD. THE person shall
18 file the PETITION WITH THE COURT NOT SOONER THAN THREE YEARS AFTER THE
19 DATE OF THE ARREST IF NO CHARGES WERE FILED, THE DISMISSAL, THE NOT GUILTY
20 VERDICT OR THE FULFILLMENT OF THE CONDITIONS OF THE PETITIONER'S PROBATION
21 OR SENTENCE AND DISCHARGE BY THE COURT, EXCEPT THAT IF A PERSON IS
22 CONVICTED OF A VIOLATION OF SECTION 13-1805, THE PERSON SHALL FILE THE
23 PETITION WITH THE COURT NOT SOONER THAN]

24 [4.] FIVE YEARS AFTER THE DATE OF THE FULFILLMENT OF THE CONDITIONS
25 OF THE [PETITIONER'S] [PERSON'S] PROBATION OR SENTENCE AND DISCHARGE BY
26 THE COURT [IF THE PERSON WAS CONVICTED OF A MISDEMEANOR OFFENSE].

27 B. THE PETITION MUST INCLUDE THE FOLLOWING:

28 1. WHETHER THE PETITIONER:

1 (a) WAS ARRESTED FOR A MISDEMEANOR OFFENSE AND NO CHARGES WERE
2 FILED.

3 (b) WAS CHARGED WITH A MISDEMEANOR OFFENSE AND THE CHARGE WAS
4 SUBSEQUENTLY DISMISSED OR RESULTED IN A NOT GUILTY VERDICT.

5 (c) WAS CONVICTED OF A MISDEMEANOR OFFENSE AND HAS FULFILLED THE
6 CONDITIONS OF SENTENCE OR ANY TERM OF PROBATION.

7 (d) HAS ANY ADDITIONAL ARRESTS OR CONVICTIONS.

8 (e) HAS OBTAINED A PRIOR EXPUNGEMENT UNDER THIS SECTION.

9 2. ANY WRITTEN RECOMMENDATION IN SUPPORT OF EXPUNGEMENT THAT IS
10 PROVIDED BY A THIRD PARTY.

11 C. THE PERSON SHALL FILE A PETITION TO EXPUNGE ALL CASE RECORDS IN
12 ONE OF THE FOLLOWING:

13 1. THE COURT IN WHICH THE PERSON WAS CONVICTED OF AN OFFENSE.

14 2. THE COURT IN WHICH AN INDICTMENT, INFORMATION, CRIMINAL CITATION
15 OR COMPLAINT AGAINST THE PERSON WAS FILED AND THE CHARGES WERE DISMISSED,
16 THE PERSON WAS FOUND NOT GUILTY OR THE PERSON'S CONVICTION WAS VACATED,
17 EXCEPT THAT IF THE COMPLAINT WAS FILED IN A JUSTICE COURT AND A SUBSEQUENT
18 INFORMATION WAS FILED, THE PETITION MUST BE FILED IN THE SUPERIOR COURT.

19 3. THE COURT IN WHICH THE PERSON HAD AN INITIAL APPEARANCE IF
20 CHARGES WERE NOT FILED.

21 4. THE SUPERIOR COURT IN THE COUNTY WHERE A PERSON WAS ARRESTED IF
22 THE PERSON DID NOT HAVE AN INITIAL APPEARANCE AND NO CHARGES WERE FILED.

23 D. THE COURT SHALL REQUIRE THE PETITIONER TO ATTEST TO THE
24 FOLLOWING AND SHALL DENY A PETITION FOR EXPUNGEMENT IF THE COURT FINDS
25 THAT EITHER OF THE FOLLOWING APPLIES:

26 1. THE PETITIONER HAS PENDING OR UNRESOLVED MATTERS IN ANY COURT OR
27 JURISDICTION IN THIS STATE OR ANOTHER STATE.

28 2. THE PETITIONER HAS NOT PAID FULL RESTITUTION OR OTHER
29 COURT-ORDERED MONETARY OBLIGATIONS.

30 E. THE COURT MAY NOT GRANT OR DENY A PETITION TO EXPUNGE A PERSON'S
31 CASE RECORDS UNTIL SIXTY CALENDAR DAYS AFTER THE COURT RECEIVES THE
32 PETITION UNLESS THE COURT RECEIVES NOTICE THAT BOTH THE PROSECUTOR AND ALL
33 VICTIMS WHO HAVE MADE A REQUEST FOR POSTCONVICTION NOTICE DO NOT OBJECT TO
34 THE PETITION. UNLESS THE PETITIONER, PROSECUTOR OR VICTIM REQUESTS A
35 HEARING, THE COURT MAY GRANT OR DENY A PETITION TO EXPUNGE CASE RECORDS
36 WITHOUT A HEARING. THE COURT MAY DISMISS A PETITION THAT DOES NOT MEET
37 THE REQUIREMENTS PRESCRIBED IN THIS SECTION WITHOUT A HEARING. THE COURT
38 SHALL GRANT THE PETITION IF THE COURT DETERMINES THAT GRANTING THE
39 PETITION IS IN THE BEST INTERESTS OF THE PETITIONER AND THE PUBLIC'S
40 SAFETY. THE COURT SHALL PROVIDE A COPY OF THE PETITION TO EXPUNGE CASE
41 RECORDS TO THE PROSECUTOR. THE PROSECUTOR MAY RESPOND TO THE PETITION AND
42 REQUEST A HEARING. THE VICTIM HAS A RIGHT TO BE PRESENT AND HEARD AT ANY
43 PROCEEDING IN WHICH THE DEFENDANT HAS FILED A PETITION TO EXPUNGE CASE
44 RECORDS. IF THE VICTIM HAS MADE A REQUEST FOR POSTCONVICTION NOTICE, THE
45 PROSECUTOR SHALL PROVIDE THE VICTIM WITH NOTICE OF THE DEFENDANT'S
46 POSITION AND OF THE VICTIM'S RIGHTS UNDER THIS SECTION.

1 F. IF THE COURT GRANTS THE PETITION FOR EXPUNGEMENT, ALL OF THE
2 FOLLOWING APPLY:

3 1. THE COURT SHALL[.:]

4 [(a)] ISSUE A SIGNED ORDER EXPUNGING THE RECORD.

5 [(b) NOTIFY THE DEPARTMENT OF PUBLIC SAFETY, THE PROSECUTING AGENCY
6 AND THE ARRESTING LAW ENFORCEMENT AGENCY, IF APPLICABLE, OF THE
7 EXPUNGEMENT ORDER.]

8 (c) SEAL THE PETITIONER'S RECORDS RELATING TO THE EXPUNGED ARREST,
9 CHARGE, ADJUDICATION, CONVICTION OR SENTENCE AND ALLOW THE RECORDS TO BE
10 ACCESSED ONLY BY THE PERSON WHOSE RECORD WAS EXPUNGED, THE PERSON'S
11 ATTORNEY OR THE DEPARTMENT OF PUBLIC SAFETY CENTRAL STATE REPOSITORY.]

12 2. THE COURT, IN ITS ORDER SHALL:

13 (a) VACATE THE PETITIONER'S JUDGMENT OF ADJUDICATION OR CONVICTION.

14 (b) STATE THAT THE PETITIONER'S ARREST, CHARGE, [ADJUDICATION,]
15 CONVICTION[, ADJUDICATION] AND SENTENCE RECORDS ARE EXPUNGED.

16 [~~(c) REQUIRE THE COURT TO NOTIFY THE DEPARTMENT OF PUBLIC SAFETY,
17 THE PROSECUTING AGENCY AND THE ARRESTING LAW ENFORCEMENT AGENCY, IF
18 APPLICABLE, OF THE EXPUNGEMENT ORDER.~~

19 [~~(d) REQUIRE THE COURT TO SEAL THE PETITIONER'S RECORDS RELATING TO
20 THE EXPUNGED ARREST, CHARGE, ADJUDICATION, CONVICTION OR SENTENCE AND
21 ALLOW THE RECORDS TO BE ACCESSED ONLY BY THE PERSON WHOSE RECORD WAS
22 EXPUNGED, THE PERSON'S ATTORNEY OR THE DEPARTMENT OF PUBLIC SAFETY CENTRAL
23 STATE REPOSITORY.]~~

24 3. THE DEPARTMENT OF PUBLIC SAFETY SHALL SEAL AND SEPARATE THE
25 EXPUNGED RECORD FROM ITS RECORDS.

26 4. THE ARRESTING AND PROSECUTING AGENCIES SHALL CLEARLY IDENTIFY IN
27 EACH AGENCY'S FILES AND ELECTRONIC RECORDS THAT THE PETITIONER'S ARREST,
28 CHARGE, [ADJUDICATION,] CONVICTION[, ADJUDICATION] AND SENTENCE ARE
29 EXPUNGED AND MAY NOT MAKE ANY RECORDS OF THE EXPUNGED ARREST, CHARGE,
30 [ADJUDICATION,] CONVICTION[, ADJUDICATION] OR SENTENCE AVAILABLE AS A
31 PUBLIC RECORD TO ANY PERSON EXCEPT TO THE PERSON WHOSE RECORD WAS
32 EXPUNGED, THAT PERSON'S ATTORNEY OR THE DEPARTMENT OF PUBLIC SAFETY
33 CENTRAL STATE REPOSITORY.

34 G. AN ARREST, CHARGE, ADJUDICATION, CONVICTION OR SENTENCE THAT IS
35 EXPUNGED PURSUANT TO THIS SECTION MAY NOT BE USED IN A SUBSEQUENT
36 PROSECUTION BY A PROSECUTING AGENCY OR COURT FOR ANY PURPOSE.

37 H. UNLESS OTHERWISE PROVIDED BY LAW, A PERSON WHOSE RECORD IS
38 EXPUNGED PURSUANT TO THIS SECTION MAY RESPOND TO ANY INQUIRY AS THOUGH THE
39 CONVICTION DID NOT EXIST. THIS SUBSECTION DOES NOT APPLY TO A PERSON WHO
40 IS SEEKING EMPLOYMENT AS A PEACE OFFICER WITH A LAW ENFORCEMENT AGENCY,
41 AND THE LAW ENFORCEMENT AGENCY MAY REQUEST A COPY OF THE PERSON'S SEALED
42 COURT RECORDS. THE LAW ENFORCEMENT AGENCY SHALL KEEP THESE RECORDS
43 CONFIDENTIAL AND SHALL DESTROY THESE RECORDS AFTER THE HIRING PROCESS IS
44 COMPLETE.

45 I. THIS SECTION DOES NOT APPLY TO ANY PERSON WHO IS CONVICTED OF:

1 1. A VIOLATION OF SECTION 13-3601, CHAPTER 14 OR 35.1 OF THIS
2 TITLE, TITLE 28, CHAPTER 4 OR A VIOLENT CRIME AS DEFINED IN SECTION
3 13-901.03.

4 2. A VIOLATION OF ANY FELONY OFFENSE OR AN OFFENSE LISTED IN
5 PARAGRAPH 1 OF THIS SUBSECTION THAT WAS CHARGED IN CONJUNCTION WITH THE
6 MISDEMEANOR OFFENSE THAT IS THE SUBJECT OF THE EXPUNGEMENT PETITION.

7 Sec. 2. Section 22-125, Arizona Revised Statutes, is amended to
8 read:

9 22-125. Justice of the peace compensation; judicial
10 productivity credits; annual report; definitions

11 A. The annual salary of each justice of the peace is determined by
12 the total judicial productivity credits of each court as reported in
13 statistics compiled by the Arizona supreme court.

14 B. Judicial productivity credits shall be determined according to
15 the following formula:

16 1. All civil filings divided by ten equals _____ judicial
17 productivity credits.

18 2. All felony counts filed divided by ten equals _____
19 judicial productivity credits.

20 3. Except for counts described in paragraph 4 of this subsection,
21 all misdemeanor counts filed divided by ten equals _____ judicial
22 productivity credits.

23 4. All counts filed that allege a violation of title 5, chapter 3,
24 article 10, title 28, chapter 4, article 3 or section 28-8282 divided by
25 five equals _____ judicial productivity credits.

26 5. All civil traffic counts filed divided by sixty equals
27 _____ judicial productivity credits.

28 6. All petitions for a protective order filed divided by five
29 equals _____ judicial productivity credits.

30 7. All civil marijuana counts filed divided by sixty equals
31 _____ judicial productivity credits.

32 8. All petitions to expunge filed pursuant to section 13-922 OR
33 36-2862 divided by sixty equals _____ judicial productivity credits.

34 C. Beginning January 1, 2018, the Arizona supreme court shall
35 annually perform the calculations required by subsection B of this section
36 for each justice court for the previous twelve-month period ending on June
37 30 to determine the total judicial productivity credits. The Arizona
38 supreme court shall report the total judicial productivity credits for
39 each justice court to the applicable board of supervisors within one
40 hundred twenty days after the end of each twelve-month period. Any
41 adjustment to the salary of a justice of the peace is effective on the
42 following January 1.

43 D. Each justice of the peace shall be paid a percentage of the
44 salary of a superior court judge based on the following schedule:

45 1. Five hundred or more judicial productivity credits equals
46 seventy percent.

1 2. Two hundred or more but less than five hundred judicial
2 productivity credits equals sixty-five percent.

3 3. One hundred fifty or more but less than two hundred judicial
4 productivity credits equals fifty-five percent.

5 4. One hundred or more but less than one hundred fifty judicial
6 productivity credits equals fifty percent.

7 5. Fifty or more but less than one hundred judicial productivity
8 credits equals forty-five percent.

9 6. Twenty-five or more but less than fifty judicial productivity
10 credits equals thirty-five percent.

11 7. Twenty-four or fewer judicial productivity credits equals
12 twenty-five percent.

13 E. If a justice court is not assigned clerical help, the board of
14 supervisors shall multiply the total judicial productivity credits by two
15 for purposes of determining the salary of the justice of the peace.

16 F. If the board of supervisors divides a justice precinct into two
17 or more precincts, the board shall set the salary of the justice of the
18 peace of each precinct equal to the highest salary of any of the justices
19 of the peace whose precinct is affected by the division. The salary of
20 each justice of the peace shall be adjusted at the end of the first full
21 calendar year after the precincts are divided.

22 G. The board of supervisors shall review and adjust the annual
23 salary for each justice of the peace within the county pursuant to
24 subsection D of this section every year beginning January 1, 2019.

25 H. The judicial productivity credits for a justice court precinct
26 shall not exceed twelve hundred credits. If the total judicial
27 productivity credits of a justice court precinct exceed twelve hundred
28 credits, the county board of supervisors shall create sufficient courts,
29 or redraw the justice court precinct boundaries according to section
30 22-101, in order to reduce the judicial productivity credits for any
31 precinct which exceeds that limit.

32 I. Except as provided in subsection F of this section, the salary
33 of a justice of the peace may not be reduced during the term in office of
34 the justice of the peace and, if a justice of the peace serves consecutive
35 terms, the salary of the justice of the peace may not be reduced before
36 the start of the consecutive term by more than one tier pursuant to
37 subsection D of this section.

38 J. A filing against a juvenile is determined in the same manner as
39 a similar filing against an adult.

40 K. For the purposes of this section:

41 1. "Civil filing" means a lawsuit, eviction action, petition for
42 provisional remedy or other civil petition, small claims case or civil
43 local ordinance.

44 2. "Civil traffic count" means a traffic violation that is not
45 filed as a misdemeanor or felony.

46 3. "Felony" includes each felony count that is filed in a
47 complaint.

Senate Amendments to S.B. 1140

1 4. "Misdemeanor" includes each misdemeanor and petty offense count
2 that is filed in a complaint or uniform traffic ticket and complaint.

3 5. "Protective order" means a petition for an order of protection,
4 an injunction against harassment or workplace harassment or a peace bond.

5 Sec. 3. Effective date

6 Section 13-922, Arizona Revised Statutes, as added by this act, is
7 effective from and after December 31, 2026.

8 Enroll and engross to conform

9 Amend title to conform

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